

MAINTENANCE AGREEMENT

I. The Parties. This Maintenance Agreement ("Agreement") made _____, 20____, is by and between:

Service Provider: _____, with a mailing address of _____ ("Service Provider"), and

Client: _____, with a mailing address of _____ ("Client").

Service Provider and Client are each referred to herein as a "Party" and, collectively, as the "Parties."

NOW, THEREFORE, FOR AND IN CONSIDERATION of the mutual promises and agreements contained herein, the Client hires the Service Provider to perform maintenance services under the following terms and conditions:

II. Term.

This Agreement shall commence on _____, 20____, and terminate: (check one)

☐ - At-Will. Written notice of at least _____ days.

☐ - End Date. On _____, 20____.

☐ - Other: _____.

III. Maintenance Services.

The Service Provider agrees to perform the following maintenance services:

Hereinafter known as the "Services".

The Service Provider shall comply with the policies, standards, and regulations of the Client, including all applicable local, state, and federal laws, to the best of their abilities.

IV. Scope of Services.

The maintenance services shall include: (check one)

☐ - Scheduled / preventive maintenance

☐ - Corrective / on-demand maintenance

☐ - Full coverage (scheduled + corrective)

☐ - Other: _____.

V. Payment Amount.

The Client agrees to pay the Service Provider the following compensation: (check one)

☐ - \$_____ / Hour

☐ - \$_____ / Visit

☐ - \$_____ / Month (flat fee)

[] - Other: _____.
Hereinafter known as the "Payment Amount".

VI. Payment Method.

The Client shall pay the Payment Amount: (check one)

- [] - When Invoiced
- [] - Weekly
- [] - Monthly
- [] - Other: _____.

VII. Inspection of Services.

Any payment shall be subject to the Client inspecting the completed Services. If any Services are found to be defective or incomplete, the Client shall notify the Service Provider in writing, and the Service Provider shall promptly correct such work within a reasonable time.

VIII. Parts and Materials.

Parts and materials required to perform the Services shall be: (check one)

- [] - Supplied by the Service Provider (included in the Payment Amount).
- [] - Supplied by the Client.
- [] - Agreed upon mutually on a case-by-case basis.

IX. Confidentiality.

Service Provider acknowledges and agrees that all financial records, client lists, and business information related to the Client are confidential ("Confidential Information") and shall not be disclosed to any third party during or after the term of this Agreement.

X. Independent Contractor Status.

Service Provider acknowledges that he/she/they are an independent contractor and not an employee, agent, partner, or joint venturer of the Client.

XI. Governing Law.

This Agreement shall be governed by and construed in accordance with the laws of the State of _____.

XII. Additional Terms & Conditions.

XIII. Entire Agreement.

This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements. No amendment shall be binding unless executed in writing by both Parties.

Client's Signature _____ **Date** _____

Print Name _____

Service Provider's Signature _____ **Date** _____

Print Name _____